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HB2027 – Business and Corporations Law for Managers

Part A – Contract Law Question

Issue

The key legal issues are whether Emily can rescind the sale of her home to Mark due to unconscionable conduct or equitable unfairness, and whether the contracts involving Sophie (a minor) are enforceable or can be terminated because of minority, parental authority, restraint, or unfair contractual terms. The court must determine whether these agreements are legally binding and whether equitable or statutory remedies apply.

Rule

The elements of a valid contract are: offer, acceptance, consideration, intention, capacity, and genuine consent (Holmes Institute 2026, Week 2, slide 5). Consent can be vitiated by unconscionable conduct, undue influence or misleading conduct. An unconscionable dealing occurs when one party has a special disadvantage, and the other party knows about it or takes advantage of it (Commercial Bank of Australia Ltd v Amadio (1983) 151 CLR 447). Special disadvantage may be established by limited English, emotional dependence and unequal bargaining power. To be enforceable, there must be consent (Holmes Institute 2026, Week 2, slides 5–8).

Minors do not have the ability to enter into a valid contract. Contracts of service, or contracts for necessities, can be enforceable, and contracts which are harsh or not to the minor's benefit may be voidable at his option. Courts determine if the agreement is truly in the minor's best interest for their welfare, career or education. Minor's contracts can be entered into by parents, but they will still be considered within the best interests of the minor. Punitive clauses for excessive compensation may also not be enforced if they are not a reasonable anticipation of loss (Holmes Institute 2026, Week 3, slides 3–5).

Application

1. Emily's Home Sale to Mark.

Emily thought that the market value of her home was \$750,000, but in reality it was \$380,000. As the community coordinator and trusted friend, Mark knew that Emily depended on him, and would probably not change her mind. There is a special disadvantage indicated by Emily's limited English ability, emotional disadvantage as a widow, and the fact that she has a trust relationship. The way Mark has used his expertise in this area is akin to the reasoning in *Amadio* (Commercial Bank of Australia Ltd v *Amadio* (1983) 151 CLR 447).

A court may find that Mark knowingly exploited Emily's vulnerability and misunderstanding for his own benefit. Emily may therefore rescind the contract for unconscionable conduct.

2. Prime Sports Management Agreement

Emily signed an exclusive management contract for Sophie, for a period of three years. As a minor Sophie's prospects will be considered in assessing this as a beneficial contract of service. The agreement may be enforceable if it genuinely benefits Sophie's sporting career. If the exclusivity is overzealous, overly restrictive or to the extent that it is an exclusive benefit to the agency, then the agreement could be voided.

However, the three-year exclusivity period may be considered excessive and contrary to Sophie's best interests. Sophie's welfare, career growth and if Emily knew the agreement's consequences before signing will be taken into account by courts. The contract may be set aside or terminated if it is not in Sophie's best interests (Holmes Institute 2026, Week 2, slide 5).

3. WaveWear Endorsement Agreement

Sophie gives up the right to sell the product, in exchange for getting the equipment and payments of \$35,000 a year. The agreement provides financial and sporting benefits to Sophie. But courts will determine whether the exclusivity clause unduly impairs Sophie's business freedom.

If the cost of repaying all equipment and damages if Sophie breaches is disproportionate, it could be deemed a penalty clause. Penalty clauses are generally unenforceable if disproportionate to the actual loss suffered. A contract or particular contract terms can be voidable if the restraint is unreasonable or the obligations are not in Sophie's best interests (Holmes Institute 2026, Week 3, remedies slides).

Emily had no knowledge of Sophie's entering into a short-term competition agreement. While minors generally have limited contractual capacity, there may be beneficial contracts that can be enforced. Sophie's involvement in national swimming competitions may be beneficial because this is likely to further enhance her development.

This contract is a short-term contract and directly related to Sophie's sporting career, making it more likely to be enforceable unless it is exploitative or unduly burdensome. It may not be rescinded because of a lack of knowledge on Emily's part.

Conclusiona

Emily may have a solid case to rescind the home sale because Mark took advantage of her limited English proficiency, vulnerability, and trust.

For Sophie's agreements:

The Prime Sports and WaveWear agreements may be unenforceable if they are excessively restrictive or not in Sophie's best interests. The National Junior Swimming League agreement is more likely enforceable because it is short-term and beneficial to Sophie's sporting development.

The most persuasive legal arguments that support Emily and Sophie are based on the concepts of unconscionability, minor capacity, and restrictions on unfair contractual penalties.

Part B – Negligence Law Question

Issue

The issue is whether Carter Tax Solutions owed Ethan a duty of care, breached that duty by providing incorrect tax advice, caused Ethan financial loss, and what remedies are available. The duty of the professional adviser to provide professional service to a client is to use reasonable care and skill (Holmes Institute 2026, week 6, slide 7).

Rule

Negligence occurs where a person owes a duty of care, breaches that duty, and causes reasonably foreseeable harm. It will arise when there is a foreseeable risk of harm and when there is a reasonable relationship of proximity between the parties (*Donoghue v Stevenson* [1932] AC 562). Professionals like accountants and tax advisers are required to provide their clients with professional advice that is reasonably skillful, careful and competent. *Hedley Byrne & Co Ltd v Heller & Partners Ltd* [1964] AC 465 established liability for negligent professional advice causing economic loss. If a professional provides advice in a situation where it is foreseeable that reliance will be made and their advice is incorrect, the professional may be liable for pure economic loss for the financial loss.

A breach is when the defendant does not meet the standard of care that a reasonable professional in that field would have provided. Courts assess whether a reasonable accountant would have interpreted the law correctly.

To establish causation, the plaintiff must prove that he followed the advice provided and that he has suffered a loss as a direct result of this advice. The “but for” test is used by courts to establish if the injury would have occurred had it not been for the defendant's negligence. Remedies in negligence are generally compensatory damages which are designed to place the plaintiff "in as good a position as he would have been in had the negligence not occurred" (Holmes Institute 2026, Week 6, slides 18-20).

Application

Carter Tax Solutions is a professional accounting partner that specializes in income tax consultancy services in Australia. Ethan approached the firm in particular to obtain legal advice relating to tax minimisation. This created a clear professional relationship and proximity between the parties. It was foreseeable that Ethan would rely on the advice. As such Carter Tax Solutions had a duty of care to give competent and accurate tax advice (*Hedley Byrne & Co Ltd v Heller & Partners Ltd* [1964] AC 465).

The firm's duty may have been breached because the Australian Taxation Office more recently found the advice was given in the context of a misapprehension of the tax laws. A court would assess whether a competent tax adviser would have made the same error. It's expected to be a higher standard of professionalism as Carter Tax Solutions claimed to be a specialist tax advisory

firm. Likely breach is found if it was a result of inadequate research, poor interpretation of legislation or failure to use reasonable care.

Ethan is then likely to be an example of a reliance on the firm's advice to the extent that he fully relied on it to put the tax minimisation strategy into place. If the correct advice had been provided, then Ethan would not have acted otherwise. If the but for test is used, the liability for the unpaid tax, interest and penalties would not have been incurred but for the negligent advice. The financial loss of \$950,000 was reasonably foreseeable, since the giving of bad tax advice is a frequent cause of reassessment, penalties and financial penalties by the Australian Taxation Office.

The court, however, may also consider if Ethan had been responsible for his own loss. If Ethan was aware that he was involved in the unusually aggressive tax arrangement or if he did not try to find out what was going on with the suspicious advice, then the damage may be reduced through contributory negligence. In addition, the court can separate the unpaid taxes which Ethan was legally required to pay even if he had acted correctly and other penalties or interest that are a direct result of the negligent advice. Damages are typically limited to losses resulting from the negligence itself, not to lawful tax obligations, in general.

Conclusion

Carter Tax Solutions is likely liable to Ethan Walker for professional negligence. The firm breached its duty by providing incorrect tax advice, causing Ethan foreseeable financial loss. Ethan will probably have a claim for damages for losses directly caused by the negligence, such as penalties, interest and maybe costs to his professional advisers in the Australian Taxation Office audit.

Part C – Corporation Law Question

Issue

The legal issue is the most suitable business structure for the premium dessert catering enterprise, based on the parties' intent to participate in management, invest, and have exposure to liability, as well as share profits. It needs to welcome passive investors, active Tashi management and protection from personal liability.

Rule

Australian businesses can be structured in a number of ways such as sole traders, partnerships, trusts and companies. A company incorporated under the Corporations Act 2001 (Cth) is a legal entity different from its members (*Salomon v Salomon & Co Ltd* [1897] AC 22). Under limited liability protection, companies have reduced personal liability for their owners; perpetual succession means the various bodies of the company are not destroyed when their founders die; and flexibility in the arrangements for ownership and management allows for the ability to swap out management components without destroying the business as a whole (Holmes Institute 2026 Week 7 slide 12).

The Corporations Act 2001 (Cth) distinguishes between the ownership of the company (by shareholders) and the running of the company (by directors). The liability of members is normally capped at the sum of money that they have paid for the shares in their possession (Holmes Institute 2026, Week 10, slide 10). In terms of the company, a proprietary company (Pty Ltd) is the preferred form of company for small business since it provides private ownership and also restricts the liability of the shareholders (Holmes Institute 2026, Week 10, slides 10 – 12).

Partnerships are characterised by joint control and mutual personal responsibility for the debts of business. The obligations of the partnership are shared between the partners, whether they are jointly or severally responsible. Sole trader structures give the owner the full control but come with the risk of unlimited liability. Trust structures can be used to provide asset protection but are more complex and less appropriate when several parties want to have ownership and management rights directly.

Application

The best structure for this enterprise is probably a proprietary limited company (Pty Ltd).

Arjun and Meera want to invest money and have a say in important business decisions without getting into day-to-day activities. They are the shareholders, meaning they can own part of the company and vote on any decisions made by the company and they can also elect directors of the company to run the business. They would only be liable for the amount of their investment and

would not be responsible for any company debt to the company's creditors (Holmes Institute 2026, Week 7, slide 12).

Tashi will operate and contribute culinary skills, not large amounts of money. The company structure would allow Tashi to become a director and manager of the business and hold shares reflecting her contribution to the business. This offers the separation of ownership and management, a significant benefit of incorporation (Holmes Institute 2026, Week 9, slide 3).

Rohan is eager to put in large amounts of money and be rewarded financially without being involved in the day-to-day running of the business. Passive investors can benefit from a company structure, as they can receive dividends without having to regularly engage in business activities. In a shareholders' agreement, Rohan can negotiate for the rights of the shareholders to keep an eye on how the money is being utilized without his own involvement in the management. This arrangement provides a balance between his intentions of seeing to it and not having too much responsibility.

A partnership would not be appropriate since everyone is a partner in the business and assumes unlimited liability and management responsibility. This is not what Arjun, Meera and Rohan want, who prefer to be a part of limited operational duties. Furthermore, general law of partnerships can impose the liability of passive investors for the business debts and actions of other partners. A sole trader organisation would also not be appropriate as there could only be one business owner who would be liable for all debts personally.

A company framework additionally offers benefits in terms of continuity and growth. The company is a legal entity and so exists beyond the lifespan of its owners and managers (*Salomon v Salomon & Co Ltd* [1897] AC 22). The stability is useful if the company is a growing luxury catering company that is in the process of recruiting more investors or commercial contracts in the future.

Conclusion

A venture form of business is a proprietary limited company (Pty Ltd). This is the preferred structure as it offers limited liability protection, is separate from ownership and management,

benefits both active and passive investors, and offers a flexible way to distribute profits via share ownership.

While they may continue to be passive investors and retain their voting rights, Tashi can take over day-to-day management as a director, and Rohan can put up money and gain financial returns without incurring operational responsibilities. A company structure better satisfies the parties' goals regarding control, investment, and limited liability than a partnership or sole trader structure.

References

Cases

Commercial Bank of Australia Ltd v Amadio (1983) 151 CLR 447.
 Donoghue v Stevenson [1932] AC 562.
 Hedley Byrne & Co Ltd v Heller & Partners Ltd [1964] AC 465.
 Salomon v Salomon & Co Ltd [1897] AC 22.

Legislation

Competition and Consumer Act 2010 (Cth).
 Corporations Act 2001 (Cth).

Lecture Slides

Holmes Institute 2026, HA2027 Business and Corporations Law: Week 2 Contract Law – Foundations, Week 2 lecture slides, Holmes Institute, Trimester T1.

Holmes Institute 2026, HA2027 Business and Corporations Law: Week 3 Contract Law – Performance, Breach & Remedies, Week 3 lecture slides, Holmes Institute, Trimester T1.

Holmes Institute 2026, HA2027 Business and Corporations Law: Lecture 6 Rights of the Parties and Discharge; Remedies for Breach of Contract; Consumer Protection, Week 6 lecture slides, Holmes Institute, Trimester T1.

Holmes Institute 2026, HA2027 Business and Corporations Law: Lecture 7 Introduction to Corporations and Law of Agency, Week 7 lecture slides, Holmes Institute, Trimester T1.

Holmes Institute 2026, HA2027 Business and Corporations Law: Lecture 9 Company Law – Governance and Directors' Duties, Week 9 lecture slides, Holmes Institute, Trimester T1.

Holmes Institute 2026, HA2027 Business and Corporations Law: Lecture 10 Company Law – Corporate Financing, Membership and Dividends, Week 10 lecture slides, Holmes Institute, Trimester T1.

Recipe of Chicken

Chicken is one of the most popular foods enjoyed all around the world. It is tasty, nutritious, affordable, and can be cooked in many different ways. Different countries and cultures have their own special chicken dishes. In Nepal and many South Asian countries, chicken curry is a favorite meal that is often eaten with rice, roti, or naan. Chicken is rich in protein and provides energy to the body. It is loved by children and adults alike because of its delicious flavor and soft texture. Preparing chicken is also considered an important cooking skill because it requires proper cleaning, seasoning, and cooking methods. A good chicken recipe not only satisfies hunger but also brings family members together during meals and celebrations.

One of the most famous and delicious chicken dishes is chicken curry. Chicken curry is made using chicken pieces, onions, tomatoes, spices, oil, garlic, ginger, and other ingredients. The recipe may vary from place to place, but the basic method remains similar. It is a flavorful and aromatic dish that can be prepared at home easily. Cooking chicken curry requires patience and attention because the spices must blend properly with the chicken to create a rich taste. A well-cooked chicken curry has tender chicken pieces and thick gravy filled with flavor.

To prepare chicken curry, several ingredients are needed. The main ingredient is fresh chicken, usually cut into medium-sized pieces. About one kilogram of chicken is enough for a family meal. Other ingredients include two chopped onions, two tomatoes, ginger paste, garlic paste, green chilies, turmeric powder, chili powder, coriander powder, cumin powder, salt, garam masala, cooking oil, and fresh coriander leaves for decoration. Some people also add yogurt, butter, or cream to make the curry richer and smoother. Potatoes can also be added for extra taste and texture.

The first step in preparing chicken curry is cleaning the chicken properly. The chicken pieces should be washed carefully with clean water to remove dirt and unwanted smell. After washing, the water should be drained completely. Then the chicken can be marinated with salt, turmeric, ginger-garlic paste, and a little yogurt. Marination helps the chicken absorb flavor and become tender. It is best to leave the chicken for about thirty minutes before cooking.

Next, a cooking pan or pot is heated with oil. Once the oil becomes hot, chopped onions are added and fried until golden brown. This step is very important because browned onions give sweetness and rich flavor to the curry. After the onions are cooked, ginger paste, garlic paste, and green chilies are added. The mixture is stirred for a few minutes until a pleasant aroma comes out. Then chopped tomatoes are added and cooked until they become soft and blend with the spices.

After the tomatoes soften, different spices such as turmeric powder, chili powder, coriander powder, cumin powder, and salt are mixed into the masala. The spices should be cooked carefully

on low heat so they do not burn. A little water may be added if the mixture becomes too dry. Cooking the spices properly is important because it enhances the taste and color of the curry. The masala becomes thick and oily when it is fully cooked.

The marinated chicken pieces are then added into the pan. The chicken should be mixed well with the masala so that every piece is coated with spices. The chicken is cooked on medium heat for several minutes while stirring occasionally. Gradually, the chicken changes color and releases its own juice. This process allows the meat to absorb all the flavors of the spices. Some people fry the chicken for a longer time to achieve a deeper flavor.

After frying the chicken, water is added according to the desired consistency of the curry. If thick gravy is preferred, less water is added, while more water creates a thinner curry. The pot is then covered with a lid, and the chicken is allowed to cook slowly for about twenty to thirty minutes. During this time, the chicken becomes soft and tender. The curry also develops a rich aroma that makes everyone eager to eat.

When the chicken is fully cooked, garam masala is sprinkled on top for extra flavor. Fresh coriander leaves are also added as decoration. Some people squeeze a little lemon juice to give freshness to the dish. The chicken curry is now ready to be served. It is usually enjoyed hot with steamed rice, roti, naan, or chapati. The combination of spicy curry and warm rice creates a delicious and satisfying meal.

Chicken curry is not only delicious but also nutritious. Chicken contains protein, vitamins, and minerals that help build muscles and maintain good health. Garlic and ginger are also beneficial because they improve digestion and strengthen the immune system. However, too much oily or spicy food should not be eaten regularly because it may affect health negatively. Therefore, balanced cooking with moderate oil and spices is important.

Cooking chicken curry also teaches valuable life skills. It helps people learn patience, cleanliness, and responsibility in the kitchen. Preparing food for family members creates feelings of love and care. In many homes, cooking together becomes a joyful activity where family members share stories and laughter while preparing meals. Food has the power to connect people emotionally and culturally.

In conclusion, chicken curry is one of the most loved and flavorful dishes around the world. It is prepared using chicken, spices, onions, tomatoes, and other ingredients that blend together to create a rich and tasty curry. The cooking process involves cleaning, marinating, frying spices, and simmering the chicken until tender. Chicken curry is enjoyed with rice or bread and is suitable for daily meals as well as special occasions. Besides being delicious, it is also nutritious and comforting. Learning how to cook chicken curry is a useful skill that can bring happiness to both the cook and the people enjoying the meal.

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